

Calendar Line 3

Case Name: *RYAN KOLSTAD vs SARAH EBRO et al*

Case No.: 24CV446807

Plaintiff's motion for sanctions pursuant to Code of Civil Proc., §§ 128.7(b)(1) and (b)(3) is DENIED.

“Code of Civil Procedure section 128.7 should be utilized only in “the rare and exceptional case where the action is clearly frivolous, legally unreasonable or without legal foundation, or brought for an improper purpose.” (*Operating Engineers Pension Trust v. A-C Co.* (9th Cir. 1988) 859 F.2d 1336, 1344.)” (*Kumar v. Ramsey* (2021) 71 Cal.App.5th 1110, 1121.) Although Plaintiff's motion is unopposed, the Court does not find that the self-represented Defendant's assertions and arguments made in support of her motion to quash, although unsuccessful, rise to the level of sanctionable conduct under section 128.7.

The Court will prepare the final order.

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Calendar Line 4

Case Name: *Corey M v. Damian Hernandez, et al.*

Case No.: 25CV466415

Plaintiff seeks an order compelling Defendant XPO Logistics to provide further responses to interrogatories and requests monetary sanctions of \$14,370.00.

The Court gleans from parties' papers that the following interrogatories were in dispute: Special Interrogatories 47-52, Special Interrogatory 65-66, and Form Interrogatories - Employment Law No. 216.1.

With respect to Special Interrogatories 47-52 and Form Interrogatories - Employment Law No. 216.1, the Court finds that Defendant has provided further responses to all the disputed interrogatories. Plaintiff's contention that Defendant's responses to Special Interrogatories Nos. 65-66 remain deficient, based solely on Plaintiff's disbelief regarding their completeness, is unpersuasive. The initial responses are no longer operative, and Defendant XPO has sufficiently addressed the relevant concerns. Thus, the Court finds that there is nothing left to accomplish by way of this motion, and there is nothing the Court can order that would or should result in more or different production. In this sense, Plaintiff's Motion to Compel Further Responses is MOOT.

Plaintiff also seeks sanctions against Defendant in the amount of \$14,370.00. The request is well taken and is GRANTED. Defendant had a responsibility to provide responses as agreed upon between the parties by January 16, 2026. (See Decl. Levy, Exhibit 9). Defendant's failure to do so made bringing this motion necessary. Even after a party provides discovery responses, the court has authority to grant sanctions, even if it denies the motion to compel responses "as essentially unnecessary, in whole or in part." (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 409.) However, the Court finds Plaintiff's claimed eleven (11) hours to prepare the motion, anticipated six (6) hours for a reply, and anticipated one (1) hour to prepare and attend the hearing on this motion excessive under the circumstances. Accordingly, Defendant shall pay Plaintiff monetary sanctions in the amount of \$6,360.00 within 20 days of the date of service of the final order.

Plaintiff shall prepare and submit the final order, accompanied by the necessary Form EFS-020, within 10 days of the date of the hearing.

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